

Law & Motion
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18. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
ORDER DESIGNATING CASE COMPLEX UNDER CRC 3.400
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a Motion for Order Designating Case Complex on February 20, 2026 (the “Complex Case Designation Motion”). The Court, on its own motion, reset the Complex Case Designation Motion for hearing on July 8, 2026 in the Court's Complex Litigation Department, Department 16 before Judge Reyes. See Local Rule 3.16(6). The matter was set back over before Department 34, to be heard on August 3, 2026.

Background

The City seeks a determination that the matter is a “complex case” within the meaning of Rule 3.400 of the California Rules of Court (CRC) and requires exceptional judicial management under the rules governing case management in matter designated as complex.

The request is opposed.

Analysis

There are a number of factors that courts must consider in determining whether a case should be deemed a “complex case” or not. Those factors include whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

See CRC 3.400(b).

The Court has considered the foregoing factors in light of the Court’s docket herein, the pleadings and the arguments by all parties regarding the nature of the case and likely scope of it. Among other things, the Court has considered the likely scope of discovery, including third party discovery.

The Opposition contends that the fundamental scope is limited—One plaintiff; one defendant; and a finite dispute over payment and design changes on a construction project, albeit a sizable project in terms of the monies involved.

While the Court understands the City’s concerns for the likelihood that discovery disputes could balloon and that there will likely be a large volume of documents to manage, the Court does not conclude that those concerns justify or require a complex case designation at this stage of the proceedings. There may be other remedies, including a discovery referee, more appropriate to tackling such issues.

It appears to the Court that this matter involves relatively straightforward and not excessively numerous claims arising from a single project between a limited number of parties. It does not present novel legal issues, an unmanageable number of parties or witnesses, or the need for extraordinary judicial supervision.

Moreover, the Court can, and often does, make case specific orders in regular case management proceedings to facilitate coordination in larger cases, even if not strictly deemed complex and managed under the rules governing complex case management.

Disposition

The Court finds and orders as follows:

1. The Complex Case Designation Motion is DENIED.
2. The moving party to prepare the order after hearing.